

2018 WL 1305157 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Gioberto MENDEZ, Petitioner,

v.

CITY OF NEW YORK, Detective **Abdiel Anderson** (Shield # 1429), SGT. Patrick Ovando (Shield # 002047) and Detective Guy Gargano (Shield # 3545), Respondent.

No. 0022304-2018.
February 27, 2018.

Affirmation

Elliot S. Kay, Esq., Law Offices of Elliot S. Kay, 115 East 57th Street, 11th Floor, New York, NY 10022, (212) 939-7251, for the petitioner.

ELLIOT S. KAY, ESQ., an attorney duly licensed to practice law before the Courts of the State of New York, hereby affirms the following to be true under penalty of perjury:

1. I am the attorney for Petitioner GIOBERTO MENDEZ and as such I am fully familiar with the facts and circumstances surrounding the above captioned action. The basis for my knowledge is derived from those files maintained by this office in connection with same.

2. I am respectfully submitting this Affirmation in Support of the instant Petition pursuant to [General Municipal Law § 50-e\(5\)](#) therein granting leave to Petitioner to serve a Late Notice of Claim on the Respondents, CITY OF NEW YORK, DETECTIVE **ABDIEL ANDERSON** (SHIELD # 1429), SGT. PATRICK OVANDO (SHIELD # 002047) and DETECTIVE GUY GARGANO (SHIELD # 3545), which will include causes of action for False Arrest/False Imprisonment, Assault, Battery and Malicious Prosecution.

3. No prior application for the relief sought herein has been made.

4. **Petitioner's claim for malicious prosecution is timely.** However, his claims for false arrest/false imprisonment, assault and battery are not timely, as the proposed Notice of Claim was served upon Respondents approximately one hundred and twenty-three (123) days late. **(Exhibit "A")**

5. I make this Petition upon information and belief. The sources of my information are the Criminal Court Complaint, Certificate of Disposition and speaking with the Petitioner.

6. On or about April 17, 2017, at approximately 3:15 p.m., in the vicinity of Anthony Avenue and Mount Hope Place in Bronx County, New York City Police Officers, including DETECTIVE **ABDIEL ANDERSON** (SHIELD # 1429), SGT. PATRICK OVANDO (SHIELD # 002047) and DETECTIVE GUY GARGANO (SHIELD # 3545), arrested Petitioner for Criminal Sale of a Controlled Substance in the Third Degree and related charges under docket number 2017BX016015. **(Exhibit "B")** Petitioner was released from custody on or about April 18, 2017. On October 19, 2017, the case against Petitioner was dismissed and sealed. **(Exhibit "C")**

7. On November 17, 2017, Petitioner filed a Notice of Claim with the City of New York, alleging causes of action for False Arrest/False Imprisonment, Assault, Battery and Malicious Prosecution. **(Exhibit "A")** Given that Petitioner

was released from custody on or about April 18, 2017, his time to file a Notice of Claim for the False Arrest/False Imprisonment cause of action expired on or about July 17, 2017. His time to file a Notice of Claim for Assault and Battery expired on or about July 16, 2017. As previously stated, Petitioner filed a Notice of Claim on November 17, 2017. (**Exhibit “A”**) Thus, Petitioner's proposed Notice of Claim was filed approximately one hundred and twenty-three (123) days late.

8. It is well settled that the Court may, in its discretion, extend the time to serve a notice of claim. See, *Matter of Lodati v. City of New York* 303 A.D.2d 406 (2nd Dept. 2003); *Matter of Allen*, 268 A.D.2d. 520 (2nd Dept. 2000). In determining whether to grant an application for leave to file a late notice claim, “the key factors which the Supreme Court must consider are whether the movant demonstrated a reasonable excuse for the failure to timely file a notice of claim, whether the municipality acquired actual notice of the essential facts of the claim within 90 days after the claim arose or within a reasonable time thereafter, and whether the delay would substantially prejudice the municipality in its defense.” *Burgess v. County of Suffolk*, 56 A.D.3d 769 (2nd Dept 2008). Neither the presence nor the absence of any one factor is determinative. See, *Matter of Dell'Italia v. Long Island Corp.*, 31 A.D.3d 758 (2nd Dept. 2006). In accord with the General Municipal Law, the Court must give particular consideration to whether municipality acquired actual notice of the essential facts of the claim within 90 days after the claims arose or within a reasonable time thereafter. See, *Munro v. Ossining Union Free School District*, 55 A.D.3d 697 (2nd Dept., 2008).

RESPONDENTS HAD NOTICE AND THE DELAY DOES NOT SUBSTANTIALLY PREJUDICE RESPONDENTS

9. It is well accepted law that for claims of false arrest, false imprisonment and malicious prosecution, where the police department conducts an extensive investigation in which the District Attorney's office joins and participates, knowledge of the essential facts constituting the claims can be imputed to the City of New York within the statutory period. Hence, the City cannot claim prejudice by any delay. *Grullon v. City of New York*, 222 A.D.2d 257, 635 N.Y.S.2d 24 (1st Dept., 1995); *Nunez v. City of New York*, 307 A.D.2d 218, 762 N.Y.S.2d 384 (1st Dept., 2003); *Phillipe v. City of New York*, 8 Misc.3d 1016A, 803 N.Y.S.2d 20 (Sup. Ct., NY Co., Ling-Cohan, J., 2005).

10. Herein, Respondents had actual knowledge of the incident giving rise to the instant proceeding. The CITY OF NEW YORK, its agents, servants and employees, arrested, imprisoned and prosecuted Petitioner. In fact, Respondent DETECTIVE **ABDIEL ANDERSON** (SHIELD # 1429) signed the Criminal Complaint the day after he arrested Petitioner. (**Exhibit “B”**) Thus, Respondents had actual knowledge of the incident giving rise to the instant proceeding.

11. As the First Department stated in *Grullon v. City of New York*, supra, in cases where the delay “...was not a lengthy one” and where the City of New York, by the police department and District Attorney's office, were actively involved in the investigation of the criminal charges on which the civil claims are based, there is simply no prejudice and no valid reason to deny Claimant the right to timely file a Notice of Claim on all the stated causes of action.

12. In conclusion, the delay of approximately one hundred and twenty-two (122) days, as to Petitioner's claims for false arrest/false imprisonment, assault and battery, has not impeded any investigation or inquiry by Respondents that will rise to substantial prejudice.

13. Based upon the foregoing, it is respectfully requested that the Petitioner be granted leave to file the proposed late notice of claim annexed hereto.

Dated: New York, NY February 27 2018

Law Offices of Elliot S. Kay

Attorney for the Petitioner

By:

ELLIOT S. KAY, ESQ.

115 East 57th Street, 11th Floor

New York, NY 10022

(212) 939-7251

Appendix not available.

End of Document

© 2018 Thomson Reuters. No claim to original U.S. Government Works.